

25STCV36294 25STCV36294

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV36294 Hearing Date: August 4, 2026 Dept: 512

HEARING DATE: Tues., August 4, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Montoya

v. Securitas Security Services COMP.

FILED: 12-10-25

USA Inc., et al.

CASE NUMBER: 25STCV36294

NOTICE: OK

PROCEEDINGS: MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendants Securitas Security Services USA

Inc.; Cox Automotive Corporate Services, LLC; Manheim Investments, Inc. dba

Manheim Riverside; and Shawn Murray

RESP. PARTY: Plaintiff Angelic Montoya

MOTION FOR JUDGMENT ON THE PLEADINGS

(Code Civ. Proc., § 438, et
seq.)

TENTATIVE RULING:

Defendants

Securitas Security Services USA Inc.; Cox Automotive Corporate Services, LLC;
Manheim Investments, Inc. dba Manheim Riverside; and Shawn Murray's Motion for
Judgment on the Pleadings is GRANTED IN PART AND DENIED IN PART.

The Motion

is GRANTED WITHOUT LEAVE TO AMEND as to Causes of Action Nos. 1-9 as to Cox
Automotive and Manheim.

The Motion

is GRANTED WITH 20 DAYS' LEAVE TO AMEND as to Causes of Action Nos. 11 and 12
as to all moving Defendants.

The Motion

is DENIED as to Causes of Action Nos. 10 and 13 as it pertains to all moving
Defendants.

Moving parties are ordered
to give notice of ruling.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 22, 2026 ☐
Late ☐ None

REPLY: Filed
on July 28, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On December 10, 2025, Plaintiff

Angelic Montoya ("Plaintiff") filed the instant action against Defendants Securitas Security Services USA, Inc. ("Securitas"); Cox Automotive Corporate Services, LLC ("Cox Automotive"); Manheim Riverside ("Manheim"); and Shawn Murray ("Murray") ("Defendants") and Does 1-100, alleging causes of action for Discrimination on the Basis of Gender; Harassment on the Basis of Gender; Sexual Harassment – Hostile Work Environment; Discrimination on the Basis of Disability; Failure to Prevent Discrimination and Harassment; Failure to Provide Reasonable Accommodation; Failure to Engage in an Interactive Process; Retaliation; Negligent Supervision, Hiring, and Retention; Wrongful Constructive Termination of Employment in Violation of Public Policy; and Intentional Infliction of Emotional Distress. (Compl., pp. 1-2.)

On February 4, 2026, Securitas filed an Answer.

On February 5, 2026, Cox Automotive and Manheim filed an Answer.

On February 6, 2026, Murray filed an Answer.

On May 1, 2026, a Notice of Related Case was filed.

On June 12, 2026, Defendants filed the instant Motion for Judgment on the Pleadings (the "Motion") and accompanying request for judicial notice.

On July 22, 2026, Plaintiff filed an Opposition.

On July 28, 2026, Defendants filed a Reply.

II.

Procedural
Matters

The Court notes that a Notice of Related Case was filed in this matter on May 1, 2026. The Court reminds the parties that a notice of related case must be filed in all cases to be related to obtain a court decision.

III.
Request
for Judicial Notice

In support of the Motion, Defendants request the Court take judicial notice of the following documents: the Complaint in this matter; three California Civil Rights Department ("CRD") responses; three Determination in Response to a Public Records Request sent to Defendants; the "CRD intake form, administrative complaint, and related CRD materials produced by the CRD concerning Plaintiff, identified as CRD No. 202503-28694726"; and the right-to-sue notice issued by the CRD in regard to Plaintiff. (Motion, RJN, Exhs. 1-9.)

The Court GRANTS the requests pursuant to Evidence Code section 452, subdivisions (c), (d) and (h).

IV.
Legal
Standard

A defendant may move for judgment on the pleadings if either "[t]he court has no jurisdiction of the subject of the cause of action alleged in the complaint" or "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438.)

The standard for ruling on a motion for judgment on the pleadings is " 'essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.' " (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216; Barker v. Hull (1987) 191 Cal.App.3d 221,

224; Code Civ. Proc., § 438.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

V.

Discussion

Defendants move for judgment on the pleadings on all thirteen causes of action in the Complaint for failure to state sufficient facts to constitute causes of action. (Motion.) Specifically, Defendants state Plaintiff failed to exhaust administrative remedies as to the first through ninth causes of action regarding Cox Automotive and Manheim; the eleventh, twelfth, and thirteenth causes of action are time-barred under the pertinent statutes of limitation; and the Complaint

fails to plead facts demonstrating all elements are satisfied for the tenth cause of action. (Motion, pp. 9-14.)

In Opposition,

Plaintiff concedes the first through ninth causes of action are deficient on exhaustion grounds and does not oppose the Motion as to these causes of action specifically limited to Cox Automotive and Manheim. (See Opp., p. 2.) However, Plaintiff opposes the Motion's contentions regarding the remaining causes of action and requests the Motion be denied as to the tenth through thirteenth causes of action in the Complaint. (See Opp., pp. 3-6.) Plaintiff contends the Complaint does not conclusively establish the eleventh, twelfth, and thirteenth causes of action are time-barred (Opp., pp. 4-5), and the tenth cause of action is adequately pled. (See Opp., pp. 3-4.) To the extent the Court finds any deficiencies in the allegations pled in the Complaint, Plaintiff requests leave to amend to: "identify Chuck's employer and authority; clarify which Cox or Manheim personnel learned of the complaint or participated in the challenged actions; plead the precise constructive discharge date; identify the dates and responsible entities associated with the later application and refusal to rehire; and clarify the alleged client-employer and agency relationships. These amendments concern the same worksite, relationship, and conduct already pleaded." (Opp., p. 6.)

In Reply,

Defendants note Plaintiff's concession regarding the first through ninth causes of action. (Reply, p. 2.) Defendants then reiterate arguments raised in the Motion and contend the Opposition fails to cure the defects in the tenth through thirteenth causes of action in the Complaint. (Reply, pp. 2-6.) Defendants oppose granting leave to amend and state that Plaintiff's inability to plead all facts known to Plaintiff at the time of filing the Complaint demonstrate leave to amend is unwarranted. (Reply, pp. 6-7.)

Meet
and Confer

Before filing a motion for judgment on the pleadings, "the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., §

439, subd. (a).)

Here, a meet and confer declaration accompanies the Motion. (Motion, Graf Decl.) The declaration states the parties' counsel met and conferred on March 18, 2026, regarding the deficiencies in the Complaint to no avail. (Code Civ. Proc., § 439, subd. (a).)

Thus, the Court finds the meet and confer requirement is satisfied.

Causes
of Action Nos. 1-9

The parties stipulate that there are insufficient facts in the Complaint to state the first through ninth causes of action as to Cox Automotive and Manheim. (See Opp. pp. 2-3; Reply, p. 2.)

Pursuant to the parties' stipulation, the Court GRANTS the Motion as to the first through ninth causes of action as to Cox Automotive and Manheim.

Cause of
Action No. 10 – Retaliation for Whistleblowing

Labor
Code section 1102.5 states, in pertinent part:

(b) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

...

(d) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for having exercised their rights under subdivision (a), (b), or (c) in any former employment.

(e) A report made by an employee of a government agency to their employer is a disclosure of information to a government or law enforcement agency pursuant to subdivisions (a) and (b).

(Lab. Code, § 1102.5, subds. (b), (d)-(e).)

“For purposes of this section, ‘employer’ or ‘a person acting on behalf of the employer’ includes, but is not limited to, a client employer as defined in paragraph (1) of subdivision (a) of Section 2810.3 and an employer listed in subdivision (b) of Section 6400.” (Lab. Code, § 1102.5, subd. (i).) Labor Code section 2810.3, subdivision (a)(1)(A) states a “client employer “means a business entity, regardless of its form, that obtains or is provided workers to perform labor within its usual course of business from a labor contractor.” (Lab. Code, § 2810.3, subd. (a)(1)(A).)

[Labor Code] Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action. The plaintiff need not satisfy McDonnell Douglas in order to discharge this burden. Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.

(Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 718.)

Here,

the Complaint alleges that Cox Automotive ("as Manheim's corporate agent and joint employer"), Securitas, and Manheim jointly or indirectly employed Plaintiff from August 2022 to early 2023 as a Security Guard; Murray was Plaintiff's direct supervisor; and Murray acted as Cox Automotive and Manheim's agent when he retaliated against Plaintiff for reporting harassment. (Compl., ¶¶ 4-8, 10, 12.) Further, the Complaint states that Defendants refused to rehire Plaintiff for open positions for which she was qualified after Plaintiff reported sexual harassment, gender discrimination, discriminatory treatment, and unsafe and improper conduct by her supervisor to Human Resources during her employment with Defendants, and "Chuck, the Regional Manager" "informed another hiring manager about her protected complaints" to Human Resources. (Compl., ¶¶ 1, 79-80.)

The Court finds these allegations suffice to plead that Defendants are employers under the Labor Code (Lab. Code, §§ 1102.5, subd. (i); 2810.3, subd. (a)(1)(A)) as well as a cause of action for Retaliation for Whistleblowing. (See Lab. Code, § 1102.5, subds. (b), (d)-(e); Lawson, supra, 12 Cal.5th at p. 718.)

The Court reminds the parties that a motion for judgment on the pleadings, like a demurrer, merely "tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc., supra, 153 Cal.App.4th at p. 1315.)

Accordingly, the Motion is DENIED as to the tenth cause of action.

Causes of Action Nos. 11-13 – Negligent Supervision, Hiring, and Retention; Wrongful Termination in Violation of Public Policy; Intentional Infliction of Emotional Distress ("IIED")

Defendants' sole contention regarding these three causes of action in the Complaint is that they are all time-barred under the pertinent statute of limitations.

A claim for negligent supervision, hiring, and retention is subject to a two-year statute of limitations. (See Code Civ. Proc., § 335.1 ["Within two years: An action for

assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another”].)

A claim for wrongful termination in violation of public policy is subject to a two-year statute of limitations. (See Code Civ. Proc., § 335.1; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1382 [“the two-year statute of limitations under Code of Civil Procedure section 335.1 applies to a common law tort cause of action for wrongful termination in violation of FEHA’s public policy against disability discrimination”].)

A claim for IIED is subject to a two-year statute of limitations. (Code Civ. Proc., § 335.1; *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 357.)

Here, the Complaint alleges that Plaintiff was employed by Defendants from August 2022 to early 2023 as a Security Guard. (See Compl., ¶ 12.) The allegations in the Complaint appear to arise from approximately 2022 through early 2023 during Plaintiff’s employment by Defendants. (See Compl., ¶¶ 37, 49, 60.)

The Court finds the allegations of the Complaint appear to state Plaintiff’s employment ended with Defendant in early 2023 and thus allegations relating to Plaintiff’s employment with Defendants occurred during the period of 2022 to early 2023. As such, the Court finds the claims for negligent supervision, hiring, and retention and wrongful termination appear to be barred under the statute of limitations, and thus the Motion is GRANTED as to the eleventh and twelfth causes of action. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881 [“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred”], citations omitted.)

However, the Court notes Plaintiff requests leave to amend to more specifically plead dates as they pertain to the eleventh and twelfth causes of action. (See Opp., pp. 4-6.)

As to the IIED

cause of action, the Court finds the Complaint alleges actions causing IIED to Plaintiff during and after Plaintiff's employment with Defendants. Indeed, the Complaint alleges that Defendants refused to rehire Plaintiff following her termination and "sabotage[ed] her subsequent employment application." (Compl., ¶ 94.) The dates of these post-employment actions are not pled in the Complaint. As such, the Court cannot find that the face of the Complaint, at this time, clearly and affirmatively shows the Complaint's IIED allegations are barred by any pertinent statute of limitations. (See Lockley, supra, 91 Cal.App.4th at p. 881.)

To the extent

that the Reply raises new arguments regarding insufficiency of the Complaint's allegations to plead an IIED cause of action, the Court finds these arguments are improperly raised for the first time in a reply brief and thus will not be addressed at this time.

Thus,

the Motion is GRANTED as to the eleventh and twelfth causes of action and DENIED as to the thirteenth cause of action.

Leave to

Amend

The Court finds

that Plaintiff stipulates to granting the Motion as to the first through ninth causes of action without leave to amend as to Cox Automotive and Manheim.

Pursuant to this

stipulation, the Court GRANTS the Motion WITHOUT LEAVE TO AMEND as to the first through ninth causes of action as to Cox Automotive and Manheim.

The Court next

addresses the eleventh and twelfth causes of action. Given this is the first challenge to the sufficiency of the allegations in the Complaint, the Opposition requests leave to amend to address all issues raised in the Motion, and the Opposition provides specific allegations that Plaintiff wishes to add to the complaint to cure deficiencies in the Complaint's allegations (see Opp., p. 6), the Court finds Plaintiff has shown that granting leave to amend as to these causes of action is warranted. (See Goodman, supra, 18 Cal.3d at p. 348; Lewis, supra, 244 Cal.App.4th at p. 226; Youngman, supra, 70 Cal.2d at p.

245.)

Thus, the Motion
is GRANTED WITH LEAVE TO AMEND as to the eleventh and twelfth causes of action.

VI.

Conclusion
& Order

For the
foregoing reasons, Defendants Securitas Security Services USA Inc.; Cox
Automotive Corporate Services, LLC; Manheim Investments, Inc. dba Manheim
Riverside; and Shawn Murray's Motion for Judgment on the Pleadings is GRANTED
IN PART AND DENIED IN PART.

The Motion
is GRANTED WITHOUT LEAVE TO AMEND as to Causes of Action Nos. 1-9 as to Cox
Automotive and Manheim.

The
Motion is GRANTED WITH 20 DAYS' LEAVE TO AMEND as to Causes of Action Nos. 11
and 12 as to all moving Defendants.

The
Motion is DENIED as to Causes of Action Nos. 10 and 13 as it pertains to all
moving Defendants.

Moving parties are ordered
to give notice of ruling.